

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR APRIL 30, 2026, AT 8:30 A.M.

By the plain statutory language, the court must first determine the interests of the parties in the subject property before it can determine the manner of partition.

Here, plaintiff meets her burden to establish the parties have concurrent 50% interests in the property and that she did not waive her right to partition. (UMF Issue 1, Nos. 1–3, Issue 2, Nos. 1–4.) The burden therefore shifts to defendants to raise a triable issue of material fact. However, defendants do not meet their burden to raise a triable issue of material fact.

Accordingly, the motion for summary adjudication is granted. The parties have an undivided interest in the property as tenants in common with plaintiff having a 50% interest and defendants having a 50% interest.

As to the manner of partition, it appears to be uncontested that the real property is a single-family dwelling. (UMF Issue 3, Nos. 1–2.) Accordingly, the court finds partition by sale would be more equitable. (Code Civ. Proc., § 872.820.)

The court is required to appoint a referee to sell the property. (Code Civ. Proc., § 873.010, subd. (a).)

The court on its own motion schedules a hearing to appoint a referee on **May 28, 2026 at 8:30 a.m. in Department 3**. The parties are directed to meet and confer in good faith, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, towards proposing a mutually agreeable referee. On or before **May 21, 2026**, the parties shall file a joint declaration updating the court on the meet and confer efforts and providing the name of a mutually agreeable referee or, if they are unable to agree, each party may submit a list of up to three proposed referees with information pertaining to their training and experience.

14. S-CV-0056028 JANSEN, DANIEL v. J.B. HUNT TRANSPORT SERVICES

The demurrer is continued to **Thursday, May 7, 2026, at 8:30 a.m. in Department 3**.

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